



Notification Waiver Determination

Wollemi Nominees 2 Pty Ltd & Ors – Establishment of WEG Australian Investment Trust and related acquisitions

Acquisition	Wollemi Nominees 2 Pty Ltd (Wollemi Nominees 2) as trustee for WEG Australian Investment Trust applied for a notification waiver in respect of the proposed establishment of the WEG Australian Investment Trust to facilitate investment into Wollemi Energy Group Holdings Pty Ltd (WEG Holdings). The Acquisition involves the following transactions: • Wollemi Nominees 2's, as trustee for WEG Australian Investment Trust, proposed acquisition of ~71.5% of the issued voting shares in Wollemi Energy Group Holdings Pty Ltd (WEG Holdings) by way of a subscription for new ordinary shares, and the transfer of existing ordinary shares held by Wollemi Nominees Pty Ltd as trustee for Wollemi Investment Trust No 1 • Wollemi Climate Investments Pty Ltd (Wollemi Climate)'s proposed acquisition of shares in WEG Holdings, by way of a subscription for new ordinary shares • REST Nominees No.1 Pty Ltd (REST Nominees)'s proposed acquisition of an interest in the WEG Australian Investment Trust as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition relates to the establishment of the WEG Australian Investment Trust to facilitate investment into WEG Holdings.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	8 September 2026

Parties to the Acquisition	Wollemi Capital Pty Ltd (Wollemi Capital) is a specialist climate investment firm. It facilitates private capital investment in, and owns and manages, a portfolio of climate-focused investments across renewables generation and battery energy storage, agribusiness, energy decarbonisation, plastics recycling and other climate-focused technology firms. Wollemi Capital is proposing to establish a new investment trust (the WEG Australian Investment Trust) to facilitate further private capital investment in its renewables portfolio investment company, WEG Holdings.
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	WEG Holdings is the ultimate holding company for Wollemi Energy Group Pty Ltd, which owns and operates MPower, a renewable energy generation and battery energy storage business. As part of the establishment of the WEG Australian Investment Trust, it is proposed that: • Wollemi Nominees 2, incorporated by Wollemi Capital, will be appointed as trustee of the WEG Australian Investment Trust. • The WEG Australian Investment Trust will be managed by Wollemi Asset Management Pty Ltd, an entity established and managed by Wollemi Capital. • The WEG Australian Investment Trust will receive capital investment from REST Nominees, for future investment in renewables and battery energy storage projects by WEG Holdings. REST Nominees is wholly owned by Retail Employees Superannuation Pty Limited as trustee of the Retail Employees Superannuation Trust (REST). REST is an industry 'profit-for-member' superannuation fund that provides superannuation and financial services. REST is an existing indirect investor in WEG Holdings via an existing investment trust established and managed by Wollemi Capital. Wollemi Climate is an existing holder of issued voting shares in the capital of WEG Holdings, and will also subscribe for new ordinary shares in WEG Holdings. Before and after the Acquisition, the relevant interests in WEG Holdings will be legally owned and managed by entities that are wholly-owned and controlled by Wollemi Capital.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal consolidation or removal of a competitor as a result of the Acquisition b. REST is already an existing indirect investor in WEG Holdings, and the Acquisition does not create any new overlap in the supply of renewable energy generation and battery storage assets c. there does not appear to be any substantive change in the control of WEG Holdings. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.

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	The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**